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BILL NO. 1597

By: Gollihare, Jett, Murdock,
Coleman, and Pederson of
the Senate

Moore of the House

An Act relating to the Oklahoma Children's Code; amending 10A O.S. 2021, Section 1-8-102, as amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-102), which relates to court-appointed special advocates; removing requirement for state association to adhere to certain national standards; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-8-102, as amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-102), is amended to read as follows:

Section 1-8-102. A. Any court-appointed special advocate (CASA) available for appointment pursuant to the Oklahoma Children's Code or the Oklahoma Juvenile Code shall complete education and

1 training courses in accordance with ~~national and~~ Oklahoma CASA
2 standards.

3 B. No court-appointed special advocate shall be assigned a case
4 before:

5 1. Completing a training program in compliance with ~~nationally~~
6 ~~documented Court-Appointed Special Advocate~~ court-appointed special
7 advocate standards. Documentation of training shall be submitted
8 annually by local court-appointed special advocate programs to the
9 Oklahoma Court-Appointed Special Advocate Association; and

10 2. Being approved by the local court-appointed special advocate
11 program, which ~~will~~ shall include appropriate criminal background
12 checks as provided in subsection C of this section.

13 C. 1. Notwithstanding any other provision of law, each local
14 court-appointed special advocate program shall require for any
15 person making application to become a court-appointed special
16 advocate volunteer or to be employed by the local court-appointed
17 special advocate program:

18 a. a child welfare records search conducted by the
19 Department of Human Services, which shall consist of a
20 search of the Child Abuse and Neglect Information
21 System maintained by the Department of Human Services
22 for review by authorized entities,

23 b. a criminal history records search conducted by the
24 Oklahoma State Bureau of Investigation, and

1 c. any other background check meeting the requirements as
2 set forth in Oklahoma Court-Appointed Special Advocate
3 Association state ~~or national~~ standards for local
4 programs.

5 2. If the prospective court-appointed special advocate
6 volunteer or employee of the local court-appointed special advocate
7 program has lived in ~~Oklahoma~~ this state for less than one (1) year,
8 a criminal history records search shall also be obtained from the
9 criminal history state repository of the previous state of
10 residence.

11 D. 1. Any person participating in a judicial proceeding as a
12 court-appointed special advocate shall be presumed prima facie to be
13 acting in good faith and ~~in so doing~~ shall be immune from any civil
14 liability that otherwise might be incurred or imposed.

15 2. Any person serving in a management position of a court-
16 appointed special advocate organization, including a member of the
17 Board of Directors acting in good faith, shall be immune from any
18 civil liability or any vicarious liability for the negligence of any
19 court-appointed special advocate organization advocates, managers,
20 or directors.

21 SECTION 2. This act shall become effective November 1, 2026.

22
23 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
24 OVERSIGHT, dated 04/14/2026 - DO PASS.